

Indian constitutional values - I

Chapter - I - Introduction

* Constitutional values - meaning, nature, scope, and relevance :-

→ meaning :-

"Constitutional values are the Fundamental principles or ideals Enshrined in a country's Constitution that Guide the Functioning of its Government, protect the Rights of its Citizens and Shape the Legal and Ethical Framework of the Society."

→ nature of constitutional values :-

1. Fundamental and universal :-

Constitutional values are Foundational to the Governance and Functioning of a nation. They represent universal ideals such as Justice, Liberty, Equality and Fraternity.

2. moral and ethical foundation :-

These values form the moral backbone of the Constitution providing Ethical Guideline for Lawmakers, Judges, and Citizens.

3. Supreme and Binding :-

Constitutional values hold Supreme Authority

over All other Laws and Governmental (2)
actions.

4. Dynamic and Evolving:-

while Constitutional values are Fundamental they are not static. They Evolve with Societal changes and the changing needs of the people

5. Democratic and Inclusive:-

Constitutional values promote democracy. participation and Inclusivity, Encouraging citizens to have a voice in how they are Governed.

6. Protective and Empowering

They protect citizens Against abuse of Power by the State or other Entities while also Empowering Individuals and Groups to Exercise their Rights and Freedoms.

7. Framework for Governance:-

Constitutional values Guide the Functioning of Institutions. Such as the Legislature, Executive and Judiciary system.

Scope of Constitutional Values:-

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1. Legal and Judicial Framework:-

Constitutional values serve as foundation to a country's legal system. They guide the creation, interpretation and application of laws. Ensuring that legislation aligns with the principles of justice, equality.

2. Governance and Institutions:-

These values guide the functioning of democratic institutions like the legislature, executive and judiciary system.

3. Citizen's Rights and Duties

The scope of constitutional values to the protection of individual rights and freedoms.

4. Social and Economic policies:-

Constitutional values influence the development of social and economic policies. Ensuring that they promote the welfare of citizens. Social Justice and Equity.

5. Human Rights and Social Justice:-

The scope of constitutional values encompass the protection and promotion of human rights. These values ensure that marginalized and vulnerable groups receive and opportunities.

6. International Relations and Global Values
Constitutional values often Resonate with
Global Norms Such as Human Rights demo-
cracy and peaceful Coexistence.

7. Cultural and Ethical Framework:-
Constitutional values promote Respect for
Cultural Diversity and ethical Behavior
by protecting the Rights of various Cultural
Linguistic and Religious Groups.

8. Educational and Civic Life:-
The promotion of Constitutional values through
Education is an Essential Aspect of their
Scope Schools universities and Civic Education

→ Composition of Constituent Assembly:-

* The Cabinet Mission Plan declared that
a Constituent Assembly shall be Established for
preparing the Constitution of India

* It shall consist of 389 seats out of these
292 seats were be Allotted to British Indian
provinces.

4 seats to the Chief Commissioner provinces
93 seats - to the Indian States.

* The Constituent Assembly held its first meeting on 9th December 1946 under the Temporary Chairmanship of its oldest member Dr. Sachidanand Sinha because of Muslim League's decision to boycott the Constituent Assembly

* On 11th December, 1946 it elected Dr. Rajendra Prasad as its permanent President. U.T. Krishnamachari and H.C. Mookherjee were elected as two vice-presidents.

The membership of the Constituent Assembly included all eminent Indian leaders.

* Drafting Committee was constituted on 29 August 1947 with Dr. B.R. Ambedkar as its Chairman.

Members - M. Bopalaswami Ayyangar, Alladi Krishnaswami Ayyar, K.M. Munshi, Saifuddin Mohammad Saadulla, N. Madhavan Rao, T.T. Krishnamachari. Dr. B.N. Rau worked as the Chief Constitutional Advisor attached to this committee.

* The Drafting Committee submitted the Draft of the Constitution to the Constituent Assembly on 21st Feb 1948.

On 26th November 1949 the Constitution was

5) Finally Adopted and Enacted when the Constitution was signed by the president of The Constituent Assembly

* Some of the Constitutional provisions came into operation immediately while as a whole the Constitution got inaugurated on 26th January 1950. Thus was fulfilled the pledge for Purna Swaraj that the people of India had taken on 26th January 1930.

* It took the Constituent Assembly 2 years 11 months and 18 days to accomplish its task.

Preamble :-

* On 13th December 1946 Pt. Jawaharlal Nehru introduced the objectives resolution in the Constituent Assembly.

* After a full and free discussion the Constituent Assembly passed and adopted the objectives resolution on 22 January 1947.

"We the people of India having solemnly resolved to constitute India into a sovereign, Socialist, Secular Democratic Republic and to secure to all its citizens

Justice - Social, Economic Political
 Liberty of Thought Expression Belief Faith
 and ~~idea~~ worship

• Equality of status and opportunity and to promote
 Among them All.

Fraternity Assuring the dignity of the
 Individual and the unity and Integrity
 of the nation.

In our Constituent Assembly This Twenty sixth
 day of November 1949 do Hereby adopt Enact
 and Give to ourselves this Constitution.

" The words Socialist Secular and Integrity
 were Added to it by the 42nd Amendment
 Act 1976 of the Constitution.

→ objectives of The Preamble :-

A. Sovereignty :-

means :- The Country has full Control over
 its Internal and External Affairs and is
 Free From Any External influence or control

→ Features of Sovereignty

1. Sovereignty in the Preamble.

2. Sovereignty in the Constitution

3. Supremacy of the Constitution

4. Federal structure and Sovereignty.

5. Emergency provisions
6. International Relations
7. power of parliament
8. Sovereignty and Fundamental Rights.

B. Democracy :-

"Democracy is a system of Government in which power is vested in the people who exercise that power directly or through elected Representatives.

Features of Democracy :-

1. Popular Sovereignty
2. Rule of Law
3. Political Freedom
4. majority Rule with minority rights.
5. Equality
6. Accountability
7. participation

C. Republic

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A Republic is a Form of Government in which the Head of State is elected. either directly by the people or through their Representatives rather than inheriting the position.

→ Features of a Republic.

1. Elected Head of State
2. Sovereignty of the people
3. Rule of Law
4. Separation of powers
5. Representation
6. Political Equality

D. Justice :-

Justice is a Fundamental Concept in Law Ethics, and philosophy that pertains to Fairness, Equality and the moral Rightness of Actions and Decisions.

It involves the Administration of Laws the protection of Rights and the Equitable Treatment of Social Individuals in Society.

E. Liberty:-

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Liberty of thought, Expression, Belief, Faith and worship as Fundamental to the Democratic ethos of the Country.

1. Fundamental Rights
2. Right to Constitutional Remedies
3. Limitations and Responsibilities.

F. EQUALITY:-

Equality is a Foundational Concept in Social Political and Legal Philosophy that Emphasize the Equal Treatment and Consideration of All Individuals, regardless of their Differences.

1. Fundamental Rights
2. Reservation Policy
3. Gender Equality.

G. Fraternity:-

Fraternity is essential for fostering social cohesion and building a society where everyone feels included and valued.

"Assuring the dignity of the individual and the unity and integrity of the nations."

1. Unity in diversity
2. Social Harmony
3. National Integration
4. Dignity of the Individual
5. Support for marginalized Communities.

Salient Features of Indian Constitution :-

1. Written and Lengthy Constitution :-
The Indian Constitution is the longest written Constitution in the world.
Consisting of 468 Articles in 35 parts
12 Schedules and more than 105 amendments.
2. Federal System with unitary features :-
The Indian Constitution establishes a Federal Structure with a clear division of powers between the Central and State Governments.
3. Parliamentary form of Government :-
India follows the parliamentary system of Government where the president is the Nominal Head of State and the prime minister is the Real Head of Government.
4. Fundamental Rights :-
Part - III Article - 12-35 of the Constitution Guarantees Fundamental Rights to All Citizens.

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Including the Right to Equality. Right to Freedom Right Against Exploitation

5. Directive principles of state policy:-
part - IV Articles - 36-51 of the Constitution contains the Directive principles of state policy which are guidelines for the central and state Governments to follow in framing policies and laws.

6. Secular state -

Indian Constitution declares India a Secular state which means that there is no official state religion

7. Single Citizenship:-

unlike federal states like the USA where dual citizenship is permitted the Indian Constitution provides for single citizenship

8. Independent Judiciary system:-

The constitution establishment an Independent Judiciary with the Supreme Court at the apex followed by High Courts and Subordinate Courts

9. Universal Adult Franchise :- (1)
The Constitution provides for universal adult suffrage allowing every citizen of India above 18 to vote in elections.

10. Emergency provisions :-

The Constitution contains provisions to handle emergencies such as national, state or financial emergency.

Role of Ambedkar in making of the Indian Constitution :-

Dr. B.R. Ambedkar is often hailed as the Father of the Indian Constitution. He played an instrumental and pivotal role in the Constituent Assembly of India.

1. Chairman of the Drafting Committee :-
On August 29, 1947, Dr. B.R. Ambedkar was appointed as the chairman of the Drafting Committee by the Constituent Assembly.

2. Architect of the Constitution :-

A. Fundamental Rights - Dr. Ambedkar was a strong advocate for social justice and equality.

Protection of Individual Rights

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B. Abolition of Untouchability:- one of his significant contributions was the constitutional abolition of untouchability.
(Article 17)

C. Social Justice and Equality - Dr. Ambedkar emphasized the importance of social justice in the constitution

3. Defender of Individual Liberty and Democracy

a. Federal Structure

b. Secularism

c. Checks and Balances.

4. Advocate for Gender Equality

a. Equal Rights for women

b. Hindu Code Bill

c. Defense of the Constitution.

Role of Nehru in making of the Indian Constitution.

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1. Leadership and Vision
2. Speeches and Resolutions
3. Chairman of Important Committees
4. Advocacy for secularism and socialism
5. Promotion of Fundamental Rights
6. Negotiations and Consensus Building
7. Role in the Preamble

1. Leadership and Vision -

As a Leading Figure in the Indian National Congress and a key Architect of modern India

2. Speeches and Resolutions -

Nehru moved the objective Resolutions which laid down the guiding principles and ideals of the Constitution

3. Chairman of Important Committees

A. Union Powers Committee, B. Union Constitution Committee, C. State Committee

4. Advocacy for secularism and socialism

Nehru was a staunch advocate for secularism ensuring that the Constitution guaranteed Freedom of Religion and the Separation of

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Religion From the State

5. promotion of Fundamental Rights

Nehru was a strong proponent of civil liberties and Individual freedoms

6. Negotiations and Consensus Building

mediator and Consensus Builder

7. Role in the preamble

Nehru ideals of Justice, Liberty, Equality and Fraternity were deeply Embedded

in the preamble of the Constitution

Core values of the Indian Constitution:-

A. Fundamental Rights:-

* The Fundamental Rights embodied in part - III Article 12-35 of the Constitution guarantee civil rights to all Indians and prevent the State from encroaching on individual liberty while simultaneously placing upon it an obligation to protect the citizen.

1. Right to Equality (14-18)

Article - 14 - Equality before law

Article - 15 - prohibition of discrimination

Article - 16 - Equality of opportunity

Article - 17 - Abolition of untouchability

Article - 18 - Abolition of titles

2. Right to Freedom (Article - 19-22)

Article - 19 - Freedom of speech and expression

Article - 20 - protection against arbitrary

Article - 21 - protection of life and liberty

Article - 22 - protection against arrest and detention

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3. Right Against Exploitation - (23-24.) ②
Article - 23 - prohibition of Traffic in Human
Beings and Forced Labour
Article - 24 - prohibition of Employment of children

4. Right to Freedom of Religion - (25-28)

Article - 25 - Freedom of Conscience and Free
profession practice and propagation of
Religion

Article - 26 - Freedom to manage Religious
Affairs

Article - 27 - Freedom from paying taxes
for the promotion of any Religion

Article - 28 - Freedom as to Attendance
in Religious functions

~~Article - 29~~

5. Cultural and Educational Rights - 29-30

Article - 29 - Right to maintain Language
Script and Culture

Article - 30 - Right to Establish and Administer
Educational

(Article - 31 :- deleted from the List of Funda-
mental Rights by the 44th Amendment and
made a Legal Right under Article - 300(A)
Right to Property (31)

6. Right to Constitutional Remedies. (Article - 32)

These writs

- (i) the writ of Habeas Corpus -
It which provides a remedy against wrongful detention of a person.
by it the court directs the Detaining Authority to produce the Detained person in the court and justify the cause of his detention
- (ii) the writ of mandamus - by it the court can order an Inferior Authority to do an Act which falls within its Jurisdiction
- (iii) prohibition - by it the court can prohibit an inferior Authority from doing an Act which does not fall within its Jurisdiction
- (iv) Quo warranta - by it the court can restrain a person from acting in a public office to which he is not entitled.
- (v) Certiorari - by it the court can order an inferior Authority to transfer the matter to it or to some other Authority for its proper consideration

→ Fundamental Duties:-

The Fundamental Duties are a novel feature of the Indian Constitution in recent times. Originally the Constitution of India did not contain these duties.

* The Forty second Constitution Amendment Act 1976 has incorporated ten Fundamental Duties in Article 51(A) of the Constitution of India.

* The Eighty-six Constitution Amendment Act 2002, has added one more Fundamental Duty in Article 51(K) of the Constitution of India. as a result there are now 11 Fundamental Duties of the Citizen of India.

1. Respect the Constitution, the National Flag and the National Anthem
2. Cherish the noble ideals of the Freedom Struggle
3. Uphold and protect the Sovereignty, Unity and Integrity of India
4. Defend the Country and Render National Service when called
5. Promote the Common Brotherhood of all the people of India and Renounce any practice derogatory to the dignity of women.

6. preserve the Rich Heritage of the nation's Composite culture
7. Protect the Natural Environment and have Compassion for Living Creatures
8. Develop Scientific Temper, Humanism and Spirit of inquiry and Reform
9. Safeguard public property and Abjure violence
10. Strive for Excellence in All Individual and Collective Activity
11. To provide opportunities for Education to children between six and fourteen years
(Added by the 86th Amendment, 2002)

→ Directive principles of State Policy :-

- * Directive principles of State Policy Included in part - IV of the Indian Constitution (Article - 36-51) are Guidelines to the Government for establishing a just and welfare-oriented society
- * DPSP aim to achieve Social, Economic, and Political Justice
- * They are classified into Socialist principles (Equal pay, worker's welfare) Gandhian principle (village panchayats, cottage Industries) and Liberal - Intellectual principles (uniform civil code, International peace)

A. Socialist principles.

- * Right to adequate means of Livelihood (Article - 39(a))
- * Equitable Distribution of wealth (Article 39(b))
- * prevention of wealth Concentration (Article - 39(c))
- * Equal pay for Equal work (Article - 39(d))
- * protection of workers, children, and Youth (Article 39(e))
- * Right to work, Education and public Assistance (Article 41)
- * Just and Humane Conditions of work (Article - 42)
- * Living wage and decent standard of Life (Article 43)

B. Gandhian principles :-

- * organization of village panchayats (Article 44)
- * promotion of Cottage Industries (Article 45)
- * promotion of educational and Economic Interests of weaker sections (Article - 46)
- * prohibition of Intoxicating drinks and drugs (Article - 47)

* organization of Agriculture and Animal Husbandry (Article -48)

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C. Liberal - Intellectual principles :-

- * uniform civil code (Article -40)
- * provision of early childhood care and Education (Article -45)
- * promotion of International peace and security (Article -51)
- * separation of Judiciary from Executive (Article -50)

Diversity :-

Diversity refers to the existence of differences among people in a society, workplace, or community. These differences may be based on culture, religion, gender, age where people from different backgrounds live together.

→ Importance of diversity

1. Encourages Creativity and Innovation
2. Improves decision making
3. Promotes Social Harmony
4. Enhances organizational performance.

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Inclusiveness :-

meaning :-

Inclusiveness means Accepting, Respecting and valuing diversity by Ensuring that Everyone has Equal opportunities to participate and Contribute.

→ Importance of Inclusiveness :-

1. Promotes Equality and Social Justice
2. Enhances Collaboration and Teamwork
3. Improves decision-making and ~~Comp~~ Innovation
4. Fosters Social and Harmony
5. Empowers marginalized Groups.